

Opinion of the Court

There can be no question either that the Sixth Amendment’s unanimity requirement applies to state and federal criminal trials equally. This Court has long explained that the Sixth Amendment right to a jury trial is “fundamental to the American scheme of justice” and incorporated against the States under the Fourteenth Amendment.²³ This Court has long explained, too, that incorporated provisions of the Bill of Rights bear the same content when asserted against States as they do when asserted against the federal government.²⁴ So if the Sixth Amendment’s right to a jury trial requires a unanimous verdict to support a conviction in federal court, it requires no less in state court.

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How, despite these seemingly straightforward principles, have Louisiana’s and Oregon’s laws managed to hang on for so long? It turns out that the Sixth Amendment’s otherwise simple story took a strange turn in 1972. That year, the Court confronted these States’ unconventional schemes for the first time—in *Apodaca v. Oregon*²⁵ and a companion case, *Johnson v. Louisiana*.²⁶ Ultimately, the Court could do no more than issue a badly fractured set of opinions. Four dissenting Justices would not have hesitated to strike down the States’ laws, recognizing that the Sixth Amendment requires unanimity and that this guarantee is fully applicable against the States under the Fourteenth Amendment.²⁷ But a four-

²³ *Duncan v. Louisiana*, 391 U.S. 145, 148–150 (1968).

²⁴ *Malloy v. Hogan*, 378 U.S. 1, 10–11 (1964).

²⁵ 406 U.S. 404 (plurality opinion).

²⁶ 406 U.S. 356.

²⁷ See *Apodaca*, 406 U.S., at 414–415 (Stewart, J., joined by Brennan and Marshall, JJ., dissenting) (“Until today, it has been universally understood that a unanimous verdict is an essential element of a Sixth Amendment jury trial. . . . I would follow these settled Sixth Amendment precedents”); *Johnson*, 406 U.S., at 382–383, 391–393 (Douglas, J., joined by Brennan and Marshall, JJ., dissenting).